

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 03/25/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: C25-01776
CASE NAME: JOHN DOE VS. ETHAN BUCKLEY
HEARING ON DEMURRER TO: COMPLAINT CONT'D FROM 2/11/2026
FILED BY:
TENTATIVE RULING:

Defendant Ethan Buckley's demurrer to the complaint is ruled on as follows.

The demurrer is **sustained** with leave to amend as to the second cause of action for public disclosure of private facts, the fifth cause of action for harassment, and the sixth cause of action for tortious interference. The demurrer is **overruled** as to the first cause of action for defamation, the third cause of action for false light, the fourth cause of action for intentional infliction of emotional distress, and the seventh cause of action for doxing.

Plaintiff shall have 15 days from the date of this order to file and serve an amended complaint.

Background

Plaintiff and Buckley were close friends in high school and into college but had a falling out in July 2023. During their friendship, they regularly communicated via Snapchat, a mobile messaging platform on which content typically disappears after being viewed. (Complaint ¶¶ 8, 9.)

In December 2021, during Plaintiff's freshman year of college at Chapman University, Buckley sent Plaintiff a Snapchat video while Buckley was partying with friends at the University of Portland. Plaintiff sent a reply video that referred to Buckley and his friends as his "niggers." Plaintiff alleges that Buckley had used the same slur in his initial message to Plaintiff's and his reply mirrored Buckley's language and tone. The complaint further alleges that both parties were intoxicated at the time, and the exchange was intended as a private joke between close friends. Plaintiff alleges he expected the video to disappear automatically after Buckley viewed it, consistent with Snapchat's standard function, and he never intended anyone else to see it. (*Id.* ¶¶ 10-13.)

During the summer of 2023, the friendship between Plaintiff and Buckley deteriorated and they had a falling out in July of 2023. (*Id.* ¶ 14)

On or about July 17, 2023, Plaintiff received a Snapchat notification that Buckley had saved two items from Snapchat to his phone's camera roll. Plaintiff did not know at that time what Buckley had downloaded. (*Id.* ¶ 15)

On or about July 18, 2023, following their falling out, Buckley sent Plaintiff a threatening message accusing Plaintiff of turning mutual friends against him. After Plaintiff denied the accusations, Buckley sent a follow-up message that included a copy of the December 2021 Snapchat video. Plaintiff interpreted this as a blackmail threat. (*Id.*, ¶ 16)

On or about August 11, 2023, Buckley contacted Plaintiff seeking to reconcile. Plaintiff confronted Buckley about the threat, and Buckley said he would never publish the Snapchat video. (*Id.* ¶ 17.)

Approximately a year later, on August 27, 2024, Buckley emailed the Snapchat video to three Chapman University administrators: its Dean of Students, Executive Vice President/Chief Advancement Officer, and Senior Vice President of University Advancement. The email, attached to the complaint as Exhibit A, states:

There is a video (attached) of one of your students going around that I thought you all should be aware of. The student involved is [Plaintiff], class of 2025. He is seen and heard, while wearing a Chapman shirt, using the racial slur (n-word), and stating that he is faded, meaning he is high on marijuana or some other type of drug. This is completely unacceptable for any of your students and he should be held fully accountable and be disciplined for this violation of your Student Conduct policies. I believe this student does not even deserve to be educated at this institution, being that he is known to display this behavior on repeat.

On or about August 29, 2024, Plaintiff contacted Buckley's mother to seek a resolution, given that the parties had not spoken in over a year. On or about September 6, 2024, Buckley's mother reported that she had spoken with Buckley and that Buckley had promised to delete all copies of the video. (*Id.* ¶¶

21-22.)

In February 2025, the University received two anonymous complaints submitted through its EthicsPoint online reporting system. Case No. 157, filed February 25, 2025, states under Case Details: "Student is saying a racial slur" and "Student posts hard "r" slur on social media frequently, making students of color including myself feel uncomfortable and unsafe."

Case No.158, filed February 27, 2025, states under What is the general nature of this matter: "[Plaintiff] says the n-word and other profane language using hard 'r' making students feel unsafe and disrespected. Was wearing Chapman merchandise, representing the school with this horrible language." Under Where did this incident occur: "Captured on video posted online." Under Please provide the specific or approximate time this incident occurred: "Recurring." Under How long do you think this problem has been going on: "3 months to a year." Under Case Details: "Graduating spring 2025, continuously using profane language and disrespecting the student body. He should not be able to graduate and represent Chapman."

On March 11, 2025, Buckley sent an apology letter to the University in which he admitted that he had forwarded the video to the University, acknowledged that he did so because he felt hurt following the parties' falling out, characterized both parties as young people who had made mistakes, expressed regret for his decision, stated that he had since deleted all copies of the video in his possession, and that he would not attempt to harm Plaintiff in the future. The letter is attached to the complaint as Exhibit C.

In mid to late March of 2025, Plaintiff learned that a friend had received a copy of the Snapchat video, forwarded to her by a third party unknown to Plaintiff. Plaintiff alleges on information and belief that the video was distributed anonymously via a "burner" Instagram account to a Black student at Chapman, who then forwarded it to the third party. Plaintiff alleges, also on information and belief, that the video was sent to multiple Chapman students, though Plaintiff does not know the total number of recipients or their identities. (*Id.* ¶¶ 25-27.)

Plaintiff asserts seven causes of action against Buckley based on these facts: (1) defamation; (2) public disclosure of private facts; (3) false light; (4) intentional infliction of emotional distress (IIED); (5) harassment; (6) tortious interference based on Buckley's disruption of Plaintiff's contractual relationship with the University; and (7) "doxing" under Civil Code section 1708.89. Plaintiff seeks non-economic compensatory damages, economic damages, statutory damages of \$30,000 under Civil Code section 1708.89(c), punitive damages, a preliminary and permanent injunction prohibiting further distribution of the video, and attorney fees and costs.

Legal Standard on Demurrer

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*290 Division (EAT), LLC v. City & County of San Francisco* (2022) 86 Cal.App.5th 439, 450 [cleaned up].) Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint

"with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.)

In summary, "[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged." (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

Analysis

Defendant demurs to all seven causes of action alleged in the complaint. Both parties address the causes of action beginning with the seventh cause of action for doxing and ending with the first cause of action for defamation. Notwithstanding, the Court addresses the causes of action in the order alleged in the complaint.

(1) First Cause of Action for Defamation

The First Cause of Action is for defamation. The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. (*John Doe 2 v. Superior Court* (2016) 1 Cal.App.5th 1300, 1312.)

The defamation cause of action rests on paragraphs 29 through 37 of the complaint. Paragraph 29 alleges that Defendant forwarded the Snapchat video via email to the University and falsely accused Plaintiff of regularly using racial slurs and posting racist content on social media. Paragraph 30 alleges on information and belief that Defendant also disseminated the video anonymously to others by electronic communications including email, text message, and direct messaging on social media. Paragraphs 31 through 37 allege that Defendant's written statements and publications were defamatory, unprivileged, intentional, malicious, and caused harm to Plaintiff's reputation, academic standing, and standing in the community.

Defendant argues the claim fails because Exhibit A contains no accusation that Plaintiff regularly uses racial slurs or posts racist content on social media, that Buckley's statements in the email are opinion rather than actionable statements of fact, that forwarding the video cannot be defamatory because the video is true, and that the email caused no natural tendency to injure because Chapman investigated and took no action.

The Court agrees that the Snapchat video itself cannot form the basis of a defamation claim. The video depicts Plaintiff's own conduct and is not false. A true recording of actual events cannot satisfy the falsity element regardless of how damaging its contents may be. The issue is whether Buckley's accompanying written statements constitute a separate actionable publication. Buckley's August 27 2024 email states in relevant part: "There is a video (attached) of one of your students going around that I thought you all should be aware of. The student involved ... is seen and heard, while wearing a Chapman shirt, using the racial slur (n-word) I believe this student does not even deserve to be

educated at this institution, being that he is known to display this behavior on repeat.”

Most of the statements in Exhibit A are either true (the video shows what it shows) or opinion (Buckley’s statement that Plaintiff’s conduct was unacceptable and he should be expelled). However the last clause, that Plaintiff “is known to display this behavior on repeat,” is different. That statement asserts as fact that Plaintiff habitually engages in racist behavior or uses racial slurs beyond the incident depicted in the video. That is a provable assertion of fact, and if false, it has a natural tendency to expose Plaintiff to hatred, contempt, and ridicule sufficient to satisfy the injury element regardless of what action the University took against him.

Defendant’s argument that the demurrer cause of action fails because Chapman took no adverse action is unavailing. When a plaintiff prevails on a claim of defamation per se, the plaintiff need not prove actual damages because damages are presumed. (*Tilkey v. Allstate Insurance Company* (2020) 56 Cal.App.5th 521, 542; *Finney v. Lockhart* (1950) 35 Cal.2d 161, 163.) The statement in Exhibit A that Plaintiff “is known to display this behavior on repeat” constitutes defamation per se because the meaning is sufficiently clear from the face of the statement. (*Tilkey, supra*, 56 Cal.App.5th at 542.)

The same analysis would apply to the anonymous EthicsPoint complaints, though it is not entirely clear from the complaint that Plaintiff is attributing those complaints to Defendant. The complaints, filed anonymously through the University’s confidential reporting system in February 2025, assert that Plaintiff habitually uses racial slurs on social media and on campus, statements that, like the “on repeat” characterization in Exhibit A, go beyond the single incident depicted in the video and assert a pattern of racist conduct as fact. Should Plaintiff establish that those complaints are also attributable to Defendant, they would constitute additional defamatory publications supporting the defamation cause of action, and damages would likewise be presumed.

For these reasons, the demurrer to the first cause of action is **overruled**.

(2) Second Cause of Action for Public Disclosure of Private Facts

In the second cause of action, Plaintiff asserts a claim for public disclosure of private facts against Buckley based on his alleged disclosure of the Snapchat video to University administrators and fellow students.

A cause of action for public disclosure of a private fact requires Plaintiff to prove that Defendant publicly disclosed a private fact, that such fact would be offensive and objectionable to a person of reasonable sensibilities, that such fact is not of legitimate public concern, and that such disclosure was a substantial factor in causing the Plaintiffs’ harm. (*Moreno v. Hartford Sentinel, Inc.* (2009) 172 Cal.App.4th 1125, 1129-1130.)

Defendant argues that the second cause of action fails because Plaintiff has not alleged a sufficiently public disclosure, contending that under California law public disclosure requires wide publication to “tens of thousands” of individuals, rather than disclosure confined to a limited audience, and that forwarding the video to a small number of University administrators through a confidential reporting platform and a few students does not meet that threshold. (Dem. 8:1-7.)

Plaintiff responds Second Cause of Action for public disclosure of private facts is sufficiently pleaded

because the video was originally shared confidentially between friends establishing its private nature, the forwarding of the video to University administrators and other students satisfies the publicity requirement under *Kinsey v. Macur* (1980) 107 Cal.App.3d 265, the content of the video would be offensive and objectionable to a reasonable person, and the private communication between friends lacks any legitimate public concern.

The demurrer is sustained because the Court agrees that Plaintiff has not alleged a sufficiently public disclosure.

Under California law, the public disclosure tort requires that the disclosure be "widely published and not confined to a few persons or limited circumstances." (*Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1, 27.) The tort must be "accompanied by publicity in the sense of communication to the public in general or to a large number of persons as distinguished from one individual or a few." (*Porten v. University of San Francisco* (1976) 64 Cal.App.3d 825, 828.) It is "no invasion to communicate that fact even to a small group." (*Timperley v. Chase Collection Cases* (1969) 272 Cal.App.2d 697, 700.)

Plaintiff relies on *Kinsey v. Macur, supra*, to argue that forwarding of the video to University administrators and students satisfies the publicity requirement. The defendant in that case embarked on a deliberate campaign to reach as many people as possible who knew the plaintiff, sending letters containing false and damaging accusations across multiple states to a diverse and entirely unconnected group of recipients including former spouses, parents, neighbors, university faculty, and the university president. (*Id.* at 268-270.) The court found that this constituted mass exposure precisely because the defendant's stated purpose was to tell the whole world about the plaintiff and her recipients had nothing in common except their acquaintance with him. (*Id.* at 272-273.)

Here, the complaint does not allege facts to show that the Snapchat video was disclosed widely or publicly. The complaint alleges that Defendant forwarded the video to three University administrators by email. The complaint also references two anonymous EthicsPoint complaints to the University's confidential reporting platform, though it is not clear from the pleading whether Plaintiff claims that Defendant submitted those complaints or whether it was third parties. Further, on information and belief, Plaintiff alleges the video was sent to an unknown number of students but does not allege facts establishing the scope or breadth of that distribution. As it stands, disclosure to a small number of University administrators and an unknown number of individuals is not the widespread publication to the public generally that the tort requires. The Court recognizes the content distributed via Instagram or other social media platforms has the potential to spread far beyond its initial recipients, and it is conceivable that on amendment Plaintiff could allege facts establishing the kind of widespread public exposure the tort requires. The complaint does not presently allege facts sufficient to show that the video reached a sufficiently broad audience.

Further, a plaintiff may allege on information and belief any matters not within his personal knowledge if he has information leading him to believe the allegations are true. (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) However, proper allegation of facts based on information and belief requires the party to further allege the information that leads him to believe the allegations are true. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.) That did not

happen here.

Paragraph 39 alleges on information and belief that Buckley disseminated the video to others by way of electronic communications including email, text message, and direct messaging on social media. The complaint does not allege any facts identifying the basis for that belief. The complaint alleges in paragraphs 25 through 27 that Plaintiff learned through a chain of intermediaries that the video had been distributed anonymously from a burner Instagram account to students at the University. Those paragraphs do not allege that Buckley operated the burner account, and do not explain what the discussions with the unknown Third Party revealed that would lead Plaintiff to attribute the distribution to Buckley. On amendment Plaintiff must allege the specific facts, if any, that lead him to believe Defendant was responsible for the broader dissemination alleged in the complaint.

The demurrer to the second cause of action is sustained with leave to amend.

(3) Third Cause of Action for False Light

The third cause of action alleges false light invasion of privacy. Defendant argues the claim fails for the same reasons as the defamation claim, citing *Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1264-65, for the proposition that a false light claim coupled with a defamation claim stands or falls on whether it meets the same requirements as the defamation cause of action.

As the Court has overruled the demurrer to the first cause of action for defamation for the reasons stated above, the demurrer to the third cause of action for false light is likewise overruled.

(4) Fourth Cause of Action for IIED

The elements of a cause of action IIED are (1) extreme and outrageous conduct by the defendant; (2) intent to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe or extreme emotional distress suffered by the plaintiff; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050; *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) "Outrageous conduct" is so extreme as to exceed all bounds tolerated in a civilized community. (*Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 397.)

Plaintiff alleges Defendant's conduct includes the following: downloading and retaining a private Snapchat video that Plaintiff reasonably expected to be deleted after viewing, threatening to distribute the video during a confrontation in July 2023, promising Plaintiff in August 2023 that he would never publish the video, forwarding the video to three Chapman University administrators in August 2024 accompanied by written accusations that Plaintiff's conduct was unacceptable, that it violated Student Conduct policies, and that Plaintiff did not deserve to remain enrolled at the University, and continuing to distribute the video after his mother confirmed in September 2024 that he had promised to delete all copies. The complaint alleges that the video was originally exchanged in the context of a private social communication in which Defendant himself used the same language in his initial message to Plaintiff, a fact that was left out of Defendant's communications to the University and others. Plaintiff alleges that as a direct result of this conduct he suffered humiliation, severe emotional distress, damage to his reputation and academic standing, fear for his personal safety, and

was subjected to a disciplinary investigation.

Taken together and accepting the allegations as true for purposes of demurrer, Plaintiff has alleged minimally sufficient facts to support the elements of an IIED claim. Discovery will reveal if the allegations are true, but at this stage the Court must treat them as such.

(5) Fifth Cause of Action for Harassment

Defendant argues that the fifth cause of action for harassment fails because the conduct alleged does not meet the definition of harassment under Code of Civil Procedure section 527.6, which requires either unlawful violence, a credible threat of violence, or a knowing and willful course of conduct that would cause a reasonable person to suffer substantial emotional distress. Defendant contends that forwarding the video to the University and unknown students does not constitute actionable harassment, and fear of future confrontation by offended third parties or organized campus activism is too speculative to qualify.

Plaintiff responds that the repeated forwarding of the video to multiple recipients at the University, combined with accusations of racism and attempts to have Plaintiff expelled, constitutes a pattern of severe and pervasive conduct that goes beyond a single incident and amounts to a coordinated effort to damage Plaintiff's reputation and educational standing sufficient to state a claim for harassment.

Under California Civil Procedure section 527.6(b) "harassment" is defined as unlawful violence, a credible threat of violence, or a knowing and willful course of conduct directed at a specific person (1) that seriously alarms, annoys, or harasses the person, and (2) that serves no legitimate purpose. The course of conduct must be such as would cause a reasonable person to suffer substantial emotional distress and must actually cause substantial emotional distress to the plaintiff.

The parties invoke the definition of harassment in CCP section 527.6, the statute provides a procedure that allows a party to petition for injunctive relief when he or she suffers harassment as define in the statute. Thus, a court may issue a temporary restraining order pending a hearing on the merits, at which time the court may issue a permanent injunction lasting up to three years. (Code. Civ. Proc. § 527.6(j).) The court orders may also contain "stay away orders" and the like. (Id., § 527.6(c) and (d).)

Here, it is not clear to the Court that a common-law cause of action for harassment exists under California law. (See, e.g., *Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1426 ["There is no common law cause of action for sexual harassment, but conduct constituting sexual harassment may be alleged in common law claims such as battery and intentional infliction of emotional distress."]; *Medix Ambulance Service, Inc. v. Superior Court* (2002) 97 Cal.App.4th 109, 118-119 [same].)

Because it does not appear that a common law cause of action for harassment exists under California law, the Court finds that Plaintiff fails to state a cause of action. The demurrer to the fifth cause of action is **sustained** with leave to amend. Plaintiff should reassert this cause of action on amendment only if he can identify a cognizable legal basis for a standalone common law harassment claim.

(6) Sixth Cause of Action for Interference with Contract

The elements of a cause of action for intentional interference with contractual relations are "(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1148.)

The demurrer to the sixth cause of action is **sustained** because, while Plaintiff alleges Defendant's conduct disrupted his contractual relationship with the University, he does not plead any actual breach or disruption of that relationship. That Plaintiff may have been required to participate in an investigation is not sufficient to show a disrupted contractual relationship, particularly where the University affirmatively assured Plaintiff that he was under no scrutiny and took no adverse action.

(7) Seventh Cause of Action for Doxing under Civil Code section 1708.89

Civil Code section 1708.89 creates a private right of action against a person who "doxes" another person, defined as "an act when a person, with intent to place another person in reasonable fear for their safety . . . by means of an electronic communication device, and without consent of the other person, and for the purpose of imminently causing that other person unwanted physical contact, injury, or harassment, by a third party, electronically distributes, publishes, emails, hyperlinks, or makes available for downloading, personal identifying information, including, but not limited to, a digital image of another person, or an electronic message of a harassing nature about another person, which would be likely to incite or produce that unlawful action."

Plaintiff alleges the following in support of the seventh cause of action:

86. Plaintiff alleges that Defendant intentionally disclosed Plaintiff's personal identifying information ("PII"), including but not limited to his full legal name, the private Snapchat Video, and the name and location of the college where Plaintiff attends, multiple times from July 17, 2023 to the present.

87. The disclosure of Plaintiff's PII was made by email, text and/or direct messaging on social media.

88. The disclosure of Plaintiff's PII was also made through EthicsPoint, a confidential, online and telephone-based system for reporting misconduct or violations of university policies for the University.

89. Defendant made the disclosure with the intent to cause, or with reckless disregard of the risk of causing, harassment, harm, or significant emotional distress to Plaintiff.

90. As a direct and proximate result of Defendant's disclosure, Plaintiff experienced substantial emotional distress, fear for personal safety, reputational harm, academic discipline, investigation, and embarrassment.

91. Plaintiff did not consent to the disclosure of his PII, and such disclosure served no legitimate public interest or legal purpose.

92. Defendant's conduct constitutes a violation of California Civil Code section 1708.89, which prohibits the intentional distribution of personal identifying information with the intent to incite or threaten physical harm or harassment, or with knowledge that the information will be used to commit such acts.

(FAC ¶¶ 86-92.)

Defendant argues the doxing claim fails because sending the video to university administrators through a confidential reporting channel does not constitute doxing. As to the disclosure to the university, the Court agrees. That disclosure does not satisfy the statutory requirements of intent to place Plaintiff in reasonable fear for his physical safety or purpose of imminently causing unwanted physical contact, injury, or harassment by a third party.

As for dissemination to the student body, Defendant argues the allegation is fatally uncertain, that Plaintiff's name and university affiliation are not private information because he was wearing a Chapman sweatshirt, that there is no allegation that Defendant forwarded the video to unknown students with intent to place Plaintiff in fear for his safety, that there is no allegation that Plaintiff was actually harassed by others, and that the EthicsPoint complaints filed by unknown students do not constitute unlawful action.

Unlike disclosure to university administrators, distribution of a video depicting Plaintiff using a racial slur to fellow students raises a reasonable inference that the disclosure was made for the purpose of causing Plaintiff unwanted harassment by a third party. Whether that distribution was likely to incite unlawful action is a factual question that cannot be resolved on demurrer.

The allegations supporting the seventh cause of action are minimally sufficient to state a cause of action arising under the anti-doxing statute. The demurrer to this cause of action is therefore **overruled**.

2. 9:00 AM CASE NUMBER: C23-01442

CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ

***FURTHER CASE MANAGEMENT CONFERENCE CONT'D FROM 2/24 TO TRAIL MOTION RE:
RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH
INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Line 11. This CMC is continued to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

3. 9:00 AM CASE NUMBER: C24-03465

CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS

***FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:**

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17, below. If Line 17 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.